

Tentative Rulings for August 4, 2026 Department M302

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M302 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT IN-PERSON OR VIA ZOOM VIDEO WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 672 7660**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2400553	PARTNERSHIP FOR ACTIVE LEARNING SERVICES, INC. VS TENAJA COMMUNITY SERVICES DISTRICT	DEMURRER

Tentative Ruling: Continue the Demurrer and the Case Management Conference to September 9, 2026.

It is currently unclear whether Defendants satisfy their obligation to meet and confer in person or by telephone with Plaintiff prior to filing the demurrer. Moving party may not waive the requirements set forth in CCP § 430.41. Moreover, considering the assertions made by Defendants in the non-substantive Reply, this lack of clarity is intensified. Nonetheless, perhaps defense counsel can clarify this at the hearing. (Please note that despite the lack of proper meet and confer efforts, a substantive workup follows.

NOTE: Defendants, TCSD and Avalon, have NOT filed a substantive reply on the grounds that they were improperly served with the Opposition and therefore were unable to file a substantive reply on time. Defendants' counsel asserts that they agreed to electronic service "only if" four named individuals were served. Plaintiff served the demurrer on only two of them, who were both out of the office (on vacation and maternity leave) at the time of service having left out of office replies directing inquiries to the remaining two individuals. It is recommended that considering this service issue, the demurrer is continued to allow Defendants to file a substantive reply.

The hearing on the demurrer is continued to allow moving Defendants, TCSD and Avalon to provide an opportunity to satisfy their obligation to meet and confer and file the appropriate declaration(s) in accordance with CCP § 430.41. Counsel for Defendants, Jennifer L. Thompson, filed a meet and confer declaration that is not clearly in compliance with CCP § 430.41. Specifically, Ms. Thompson declares, in conclusory fashion: "I have met and conferred with Plaintiff's counsel via email on multiple occasions regarding the issues raised in the instant demurrer. I have also met and conferred with him via telephone. We reached an impasse in our meet and confer efforts, which prompted the filing of the instant demurrer." (Dec.Thompson ¶ 10.) Ms. Thompson has not provided *the date*¹ that she "met and conferred" with Plaintiff's counsel, which makes it unclear whether she met and conferred with Plaintiff's counsel by phone about *the TAC*. Therefore, it appears that substantive meet and confer efforts as to the TAC have not been engaged in by telephone or in person as required.

Accordingly, the hearing on the demurrer is continued. Moving Defendants are ordered to meet and confer with Plaintiff by telephone or in person for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer and motion to strike. As part of the meet and confer process, Defendants shall identify with legal support the basis of the alleged deficiencies in the subject pleadings.

¹ This is important to ensure that meet and confer efforts occurred as to the operative TAC as opposed to prior versions of the complaint.

Plaintiff shall provide legal support for her position that the pleadings are legally sufficient or, in the alternative, how they may be further amended to cure any legal insufficiencies.

After meeting and conferring, Defendants shall, 10 days before the continued hearing date, set above do one of the following:

- (1) vacate the hearing on the demurrer;
- (2) file with the Court a declaration stating the parties have agreed that Plaintiff will file an amended pleading/claim for damages before the date set forth above; or
- (3) file with the court a declaration stating how the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve.

The Court will not accept further briefing.

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2.

CASE #	CASE NAME	HEARING NAME
CVME2401231	TARQUINI VS FOUR WINDS ENTERPRISES INC.	MOTION TO STRIKE

c GRANTED; NO OPPOSITION FILED

3.

CASE #	CASE NAME	HEARING NAME
CVME2500794	FOX VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEY'S FEES

Tentative Ruling: GRANTED

Award fees of \$13,095.00.

Costs were sought via memorandum of costs; Defendant did not file a motion to tax costs.

Plaintiff Sheila Fox brought this Song-Beverly action regarding a 2022 Chevy Trailblazer that had brake, radio and infotainment defects. The complaint, filed 1/17/25, asserts: (1) breach of implied warranty of merchantability; and (2) breach of express warranty. On 1/21/26, Plaintiff filed a notice of settlement.

Plaintiff moves for attorney's fees of \$19,994 plus a .1 multiplier of \$1,999.40, and costs of \$1,722.33, for a total of \$23,715.73. Plaintiff contends that Defendant refused to meet and confer about the fees. Defendant failed to make any formal settlement offers, requiring Plaintiff to litigate. Plaintiff asserts that the fees are reasonable. She argues that any challenge must be to specific entries.

Defendant contends that this was a streamlined case resolved under AB 1755, and nothing more than initial disclosures were provided when the case settled on October 24, 2025. It complains that the bulk of the fees sought relate to this motion and a non-existent motion to strike costs. It argues the court should deny the motion as untimely since the parties settled on 10/24/25. It otherwise challenges various entries. It contends the case does not warrant a multiplier. It requests the court strike costs as they are not reasonable.

In reply, Plaintiff contends that Defendant failed to object to the hourly rates. Plaintiff also concedes that Defendant did not file a motion to tax costs and withdraws the 6.4 hours spent. Plaintiff asserts that the case has not been dismissed, and therefore, the motion is not timely. Plaintiff then contends that Defendant improperly lumps fees together. She otherwise justifies each of the entries.

Defendant first contends that the motion is untimely pursuant to *Hatlevig v. General Motors* (2026) 118 Cal.App.5th 644. *Hatlevig* does not apply. After the plaintiff notified the court of a settlement, the court set a dismissal within 45 days (i.e. 8/15/23) unless the parties showed good cause why the case should not be dismissed; neither party demonstrated good cause. (*Id.* at 646-647.) The court held that the motion for attorney fees must be filed pursuant to Cal. R. Ct., rule 3.1702, which must be served and filed within the time for a notice of appeal, i.e. 60 days after service of notice of entry of judgment or 180 days after entry of judgment. (*Id.* at 649.) The court found that the date of notice of dismissal was 8/15/23, and the plaintiff untimely served his motion after the 180 days. (*Id.* at 650.) Here, there is no dismissal, thus, the time to file and serve the motion was not triggered. The motion is timely.

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done considering the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

According to Plaintiff, the lodestar is as follows:

Attorney	Hourly Rate	Hours	Total
David Barry	\$695	9.3	\$6,463.50
Kristopher Storti	\$600	.7	\$420.00
C. Richard Lara	\$375	23.1	\$8,662.50
TOTAL		33.1	\$15,546.00

While Defendant does not challenge the hourly rates, they are excessive for a lemon law case. The court awards Barry \$600/hr, and Storti \$450/hr.

As to time spent, Defendant challenges the following time spent:

- Pre-Engagement Work: The court finds that counsel did not actually bill the client, as they are marked as non-billable. What counsel billed is reasonable.
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- Initial Disclosures: The court finds that the 3.0 spent on initial disclosures is excessive. A reasonable amount is 1.5 hours.
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- Client Communications: The court finds 4.3 hours communicating to the Plaintiff about the case status excessive. For example, Barry spent 2.0 hours drafting a single letter on 10/27/25. The court reduces Barry's time by 1.5 hours.
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- Attorney's Fee Motion: Lara spent 6.4, Storti spent .3, and Barry 2.0 on this motion. The court finds this is reasonable.
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Accordingly, the court awards the following:

Attorney	Hourly Rate	Hours	Total
David Barry	\$600	7.8	\$4,680.00
Kristopher Storti	\$450	.7	\$315.00
C. Richard Lara	\$375	21.6	\$8,100.00
TOTAL		33.1	\$13,095.00

There should be no multiplier. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchem v. Moses* (2001) 24 Cal.4t h 1122, 1132.) The party seeking enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) There is no basis for enhancement. This is merely double billing. Again, this was not a complicated case. As to the skill, again, there was no exceptional quality of work in this case to justify a multiplier.

As for costs, Plaintiff appropriately filed a memorandum of costs. (Cal. R. Ct. 3.1700.) Defendant did not file a motion to tax costs and cannot challenge costs via opposition to this motion.

4.

CASE #	CASE NAME	HEARING NAME
CVME2511814	RIETA VS GARCIA	MOTION FOR LEAVE TO AMEND

Tentative Ruling: GRANTED; NO OPPOSITION FILED

5.

CASE #	CASE NAME	HEARING NAME
CVME2512122	CARCAMO VS SANDOVAL	DEMURRER

Tentative Ruling: OFF CALENDAR

6.

CASE #	CASE NAME	HEARING NAME
CVME2513330	HOLLOWAY VS RABINEAU	DEMURRER

Tentative Ruling: MOTION TO STRIKE DENIED

DEMURRER SUSTAINED WITHOUT LEAVE TO AMEND as to the 4th Cause of action.

On May 21, 2026, the Court reconsidered its earlier May 12, 2026, rulings on Defendant's motion to strike and demurrer, and ordered that the rulings be stricken on the ground that Defendant had not met its obligation to meet and confer in accordance with Code of Civil Procedure sections 435.5 and 430.41.

The Court continued the matters to August 04, 2026, and ordered Defendant to meet and confer. Defendant was to, 10 days before the continued hearing date, either vacate the hearing or file with the court a declaration stating whether Plaintiff agreed to amend the complaint or stating the means by which they met and conferred and identifying the specific objections to the motion which the parties were unable to resolve. In accordance with the Court's order, Defendant's counsel filed a declaration explaining that, despite multiple efforts to meet and confer by telephone, Plaintiff failed to cooperate by continuing to delay the call and failing to respond to counsel's follow-up requests. (See Declaration of Virginia Narian ¶¶ 7-12, filed on July 23, 2026.)

Under the statutory meet and confer provisions, Defendant may satisfy the requirement to meet and confer by filing a declaration stating "[t]hat the party who filed the pleading subject to demurrer or motion to strike failed to respond to the meet and confer request of the [demurring and moving] party or otherwise failed to meet and confer in good faith." (Code Civ. Proc., §§ 430.41(a)(3)(A)&(B); 435.5(a)(3)(A)&(B).) Here, this requirement was met

Deny.

The motion is denied because the Complaint sufficiently alleges the ultimate facts supporting a claim for punitive damages pursuant to Civil Code section 3294. The cause of action for breach of fiduciary duty supports misappropriation of funds amounting to constructive fraud.

Emotional distress damages are recoverable where the distress “naturally ensued from the acts complained of”; and emotional distress is “not an inevitable consequence of the loss of money.” (*Merenda v. Superior Court* (1992) 3 Cal.App.4th 1, 10, disapproved on other grounds by *Ferguson v. Lieff Cabraser, Heimann & Bernstein* (2003) 30 Cal.4th 1037, 1044 [balancing of policy considerations under the factors provided in *Biakanja v. Irving* (1958) 49 Cal.2d 647, 651].)

Plaintiff has sued her former attorney for professional malpractice in the handling of settlement funds from a prior personal injury claim and for charging excessive fees that resulted in Plaintiff’s recovery of only a fraction of the settlement. On December 16, 2025, Plaintiff filed her Complaint in this case alleging the following causes of action against the former attorney: (1) Legal malpractice; (2) breach of fiduciary duty; (3) conversion/misappropriation of client funds; and (4) intentional infliction of emotional distress (“IIED”). Plaintiff also claims she is entitled to punitive damages. Plaintiff is proper.

Defendant moves to strike the portion of the Complaint concerning Plaintiff’s claim for punitive damages. Defendant argues that the misconducts alleged in the Complaint, merely amounts to ordinary negligence and cannot constitute the malice, oppression, or fraud necessary for seeking punitive damages because the requisite “evil motive” is missing in the allegations. Defendant also contends that Plaintiff’s allegation that Defendant illegally embezzled proceeds from the attorney trust account belonging to Plaintiff for personal use, engaged in fraudulent billing practices by commingling Plaintiff’s cases, and exaggerating the amount Plaintiff owed are vague, conclusory allegations without any factual support.

Defendant also concurrently demurs to Plaintiff’s cause of action for IIED because Plaintiff fails to state conduct so extreme as to be beyond all bounds of decency tolerated by society and therefore cannot meet the elements necessary to allege a cause of action.

Plaintiff filed an opposition to the motion to strike. Plaintiff offers no substantive argument in support of her opposition to the motion to strike and merely argues that the motion is procedurally proper and that the challenged allegations are relevant and material, and not subject to be stricken under Code of Civil Procedure section 436. Plaintiff did not file a separate opposition to the demurrer, but her argument in response to the demurrer is also embedded in the opposition to the motion to strike. Plaintiff, citing *Kaushansky v. Stonecroft Attorneys, APC* (2025) 109 Cal.App.5th 788, argues that emotional distress damages are recoverable in an action for breach of fiduciary duty.

In summary, the motion to strike is denied for reason Plaintiff has alleged the ultimate facts supporting a claim for punitive damages. The demurrer is sustained without leave to amend for reason Plaintiff has not alleged facts showing that emotional distress

was an inevitable consequence from Defendant's breach of his fiduciary duties. Plaintiff's emotional upset comes from an inherently economic concern.

Defendant brings a motion to strike, arguing that the Complaint is requesting for the relief of punitive damages which is not supported by the allegations. Here, however, the Complaint is sufficient to sustain a basis for punitive damages.

Punitive damages are authorized by statute in an action for breach of an obligation not arising from contract, where the tortious event involves an additional component of "oppression, fraud, or malice" which must be proven with "clear and convincing evidence." (Code Civ. Proc., § 3294, subd. (a).) To state a claim for punitive damages under Civil Code Section 3294, a plaintiff must plead facts supporting a showing of malice, oppression or fraud as defined by Civ. Code §3294(c):

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

"To support punitive damages, the complaint...must allege ultimate facts of the defendant's oppression, fraud, or malice." (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 316-317.) Conclusory characterization of defendant's conduct as "intentional, willful and fraudulent is patently insufficient statement of 'oppression, fraud, or malice, express or implied,' within the meaning of section 3294." (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) "Because punitive damages are imposed 'for the sake of example and by way of punishing the defendant' (§3294, subd. (a)), they are typically awarded for intentional torts such as assault and battery, false imprisonment, intentional infliction of emotional distress, defamation," etc. (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211.)

Here, Plaintiff's allegations are sufficient to allege a claim for punitive damages. Plaintiff alleges as follows. Defendant represented Plaintiff in a trip-and-fall claim against the City of Compton. (Complaint, ¶¶ 3-8.) Plaintiff alleges that no work was done in Plaintiff's case from the time of representation up until late 2019. (Complaint, ¶ 9.) Plaintiff alleges that Defendant did not communicate with her about the case. (Complaint, ¶ 10.) While the trip-and-fall case was under progress, Plaintiff was injured in an automobile accident for which Defendant agreed to represent Plaintiff. (Complaint, ¶¶ 11-13.) Defendant assured Plaintiff that civil actions would be filed in court for both civil matters, but no civil complaint was filed. (Complaint, ¶¶ 16, 18.) Plaintiff alleges that, once Defendant had Plaintiff "locked in," he misused Plaintiff's funds by commingling the funds between the two cases in which Defendant represented Plaintiff. (Complaint, ¶ 19.)

Plaintiff also alleges that Defendant misused the funds in Plaintiff's attorney trust account by paying Plaintiff for a settlement from one case with the settlement funds from the other case. (Complaint, ¶ 20.) Plaintiff was later informed by Defendant that the trip-and-fall case settled for \$115,000, but the net settlement recovery for Plaintiff was only \$16,113.85 after deducting attorney's fees of \$46,000, medical liens in the amount of \$27,833.53, litigation costs of \$17,952.62, and advances to Plaintiff in the amount of \$7,100. (Complaint, ¶ 22.) When Plaintiff asked for accounting or a ledger with itemization of the services provided, Defendant advised her that this was impossible because all of Defendant's client accounts are in the same trust account. (Complaint, ¶ 23.) Plaintiff alleges that Defendant illegally embezzled proceeds from the attorney trust account belonging to Plaintiff for personal use and was unjustly enriched thereby. (Complaint, ¶ 24.)

Defendant argues that the misconducts alleged in the Complaint, merely amounts to ordinary negligence and cannot constitute the malice, oppression, or fraud necessary for seeking punitive damages because the requisite "evil motive" is missing in the allegations. This argument fails as punitive damages are recoverable in cases alleging breach of fiduciary duty constituting constructive fraud, and the Complaint is sufficient to state such a claim. (See *Michaelson v. Hamada* (1994) 29 Cal.App.4th 1566, 1582.) "An attorney owes all clients ... duties of undivided loyalty and diligence, among other fiduciary duties." (*White Mountains Reins Co. of America v. Borton Petrini, LLP* (2013) 221 Cal.App.4th 890, 902.) "[A] breach of fiduciary duty is a species of tort distinct from a cause of action for professional negligence." [Citations.] (*Stanley v. Richmond* (1995) 35 Cal.App.4th 1070, 1086.) Breach of duty may amount to "a unique species of fraud applicable only to a fiduciary or confidential relationship." (*Prakashpalan v. Enstrom, Lipscomb & Lack* (2014) 223 Cal.App.4th 1105, 1131, internal quotation marks omitted.) " 'Constructive fraud "arises on a breach of duty by one in a confidential or fiduciary relationship to another which induces justifiable reliance by the latter to his prejudice." [Citation.]' [Citation.]" (*Ibid.*) Here, Plaintiff's Complaint alleges the cause of action for breach of fiduciary duty based on Defendant's misconduct during his representation of Plaintiff. Plaintiff alleges that Defendant mishandled and commingled Plaintiff's settlement funds and refused to provide an accounting and concealed information that would disclose whether the net recovery distributed to Plaintiff is proper and just. Without the disclosure of proper accounting, Plaintiff is unable to make such determination and is left with only a fraction of the \$115,000 settlement, and the inability results in prejudice to Plaintiff. The allegations such improper billing practices satisfies the elements of constructive fraud as set forth in *Prakashpalan v. Enstrom, Lipscomb & Lack, supra*, 223 Cal.App.4th at 1131.

Defendant contends that Plaintiff's allegation that Defendant engaged in fraudulent billing practices are vague, conclusory allegations without any factual support. However, "[t]he particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed information that can be conveniently provided by the Plaintiff. [Citation.]" (*Roger v. County of Riverside* (2020) 44 Cal.App.5th 510, 533.) "[L]ess particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the Plaintiff" and any ambiguity may be resolved through the discovery process. (*Ibid.*) Here, Defendant is alleged to have suppressed

information needed for proper accounting and as a result, the pleading may be alleged with less particularity.

Accordingly, the motion to strike is denied.

To state a cause of action for Intentional Infliction of Emotional Distress (“IIED”) Plaintiff must allege: (1) “extreme and outrageous conduct by defendant with an intention of causing or reckless disregard of the probability of causing emotional distress”; (2) “severe or extreme emotional distress”; and (3) “actual and proximate causation of the emotional distress by the defendant’s outrageous conduct”. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.) An outrageous conduct is one that was so extreme as to be beyond all bounds tolerated by society, which must be alleged with great specificity. (*Id.* at 1051; *Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160-161.) Defendant argues that the Complaint fails to state conduct so extreme as to be beyond all bounds of decency tolerated by society and therefore cannot meet the elements necessary to allege a cause of action.

In opposition, Plaintiff cites *Kaushansky v. Stonecroft Attorneys, APC* (2025) 109 Cal.App.5th 788, in which the court held that “[e]motional distress damages may be recoverable if directly caused by an attorney’s conduct in breach of his fiduciary duties.” (*Id.* at 767.) But not every claim for breach of fiduciary duty supports a claim for emotional distress. The *Kaushanky* court recognized the lines of cases which held that “ ‘[e]motional distress damages ordinarily are not recoverable in a legal malpractice action if the representation concerned primarily the client’s economic interests and the emotional injury derived from an economic loss.’ [Citation.]” (*Id.* at 768.) It held that, even in the case of breach of fiduciary duty, the client must sufficiently allege that the “ ‘intentional or affirmative misconduct by an attorney or noneconomic injury resulting from an attorney’s professional negligence.’ [Citation.]” (*Ibid.*) Here, the allegations show that Plaintiff’s alleged emotional distress ensued from purely economic losses of not receiving the expected settlement rather than Defendant’s alleged misconduct that caused the economic losses.

7.

CASE #	CASE NAME	HEARING NAME
CVME2513330	HOLLOWAY VS RABINEAU	MOTION TO STRIKE

Tentative Ruling: See above.

8.

CASE #	CASE NAME	HEARING NAME
CVME2602721	VILLEDA VS INTERNATIONAL COFFEE & TEA, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: GRANT the motion to compel arbitration and stay civil proceedings pending arbitration.

This is an employment action involving violations of the Fair Employment and Housing Act (FEHA) and the Labor Code. Plaintiff, Valeria Villeda, alleges she worked at Defendant, International Coffee & Tea, LLC's location at 31938 Temecula Parkway in Temecula. Defendant, Yolanda Griffin, is alleged to be Defendant's District Manager. Her employment began in August of 2021. In April of 2024, Plaintiff informed Griffin that she was pregnant. Plaintiff went on medical leave on 10/31/24 due to illness and complications associated with her pregnancy. Her return-to-work date was extended twice until 8/11/25. Plaintiff was terminated on 7/15/25. Plaintiff filed her Complaint on 1/29/26 alleging fourteen causes of action: 1) – 4) & 6) FEHA claims; 5) retaliation under CFRA; 7) – 10) wage and hour violations; 11) Bus. & Prof. Code § 17200, *et. seq.*; 12) wrongful termination in violation of public policy; 13) declaratory relief; and 14) injunctive relief.

Defendant, International Coffee & Tea, LLC, brings this motion to compel arbitration pursuant to the Mutual Arbitration Agreement (MAA) and to stay civil proceedings. (Federal Arbitration Act [FAA] 9, USC § 4, *et. seq.* and the California Arbitration Act [CAA] CCP § 1280, *et. seq.*) Defendant argues that Plaintiff signed the subject MAA, which is valid and enforceable; is governed by the FAA; is also enforceable under California law; that all Plaintiff's claims relate to Plaintiff's employment falling within the scope of the MAA; that the MAA is not unconscionable; and the court may sever any unconscionable terms.

Plaintiff, Valeria Villeda, opposes the motion arguing that the MAA is unauthenticated and so, does not exist; and that she is exempt from arbitration under Labor Code § 229; that she is exempt from the FAA as a transportation worker; and that the MAA is replete with unconscionable terms.

The Reply asserts that there are more details establishing that Plaintiff signed the MAA; that all evidentiary standards have been met; that a supplemental declaration is appropriate to reply to Plaintiff's argument regarding authentication of her electronic signature; that Plaintiff is not a transportation worker – she was the General Manager (GM) of the specific Temecula location; that Labor Code § 229 is preempted by the FAA; and, that the MAA is not unconscionable.

Upon the petition/motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC rule 3.1330; *see also Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–19.) The party seeking arbitration must prove the existence of the arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2015) 55 Cal.4th 223, 236.) The burden then shifts to the opposing party to prove any defense such as unconscionability. (*Id.*)

“In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability Parties may submit declarations when factual issues are tendered with a motion to compel arbitration.” (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

The California Supreme Court recently explained in *Fuentes v. Empire Nissan, Inc.* (2026) 19 Cal.5th 93, 110, that relying on a policy favoring arbitration “as an interpretive presumption” was “misplaced.” “[T]he policy “favoring” arbitration is not one of promoting arbitration over litigation, but instead of ensuring that arbitration agreements are not disfavored, i.e., that they are treated like other contracts.” (*Id.* citing *Quach v. Cal. Commerce Club, Inc.* (2024) 16 Cal.5th 562, 579.) Thus, there is no longer a presumption that the law favors arbitration over litigation in court.

There is no dispute that the FAA applies to the MAA in this case. The FAA governs arbitration in written contracts involving interstate commerce, and provides that arbitration agreements are valid, irrevocable, and unenforceable unless there are grounds that exist at law or in equity for the revocation of any contract. (9 USC § 2; *Rittmann v. Amazon.com, Inc.* (9th Cir. 2020) 971 F.3d 904, 909.) The FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the Act, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the contract involves interstate commerce and the FAA preempts state law has the burden of proving that the underlying transaction involved interstate commerce. (*Woolls v. Sup. Ct. (Turner)* (2005) 127 Cal.App.4th 197, 211-214.) Importantly, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.) Here, the AA expressly states that it is governed by the FAA. (Dec.Rodrigues ¶ 8, Ex. “A”, p. 1.)

The FAA exempts certain contracts from its scope, specifically the employment

contracts of ‘seamen, railroad employees, [and] any other class of workers engaged in foreign or interstate commerce.’” (*Rittmann, supra.*) The *Rittmann* Court noted that the issue presented was whether the transportation workers had to cross state lines to be “engaged in interstate commerce” for purposes of applying the exemption. (*Id.*) The Court determined that Amazon’s delivery providers fell within the exemption, and therefore, their employment contracts were not subject to the FAA. (*Id.* at 909.) In other words, transportation workers do not have to cross state lines to be considered to be engaged in the movement of goods in interstate commerce.” (*Id.* at 910, 915²; see also, *Ortiz v. Randstad Inhouse Servs., LLC* 95 F.4th 1152, 1160 (9th Cir. 2024).)

² Notably, this Court is not bound by the *Rittmann* case. While federal court decisions may be cited as persuasive authority, they are not controlling. (*People v. Gonzales and Soliz* (2011) 52 Cal.4th 254, 296; see *People v. Crittenden* (1994) 9 Cal.4th 83, 120 n.3 [decisions of lower federal courts are not binding]; see also, *Valencia v. SCIS Air Security*

Moreover, a worker does not need to be in the transportation industry to fall within the exemption. (*Bissonnette v. Lepage Bakeries Park St., LLC* (2024) 601 U.S. 246, 252.) Since the FAA is a clear policy in favor of arbitration, section 1 is given a narrow construction. (*Performance Team Freight Systems, Inc. v. Aleman* (2015) 241 Cal.App.4th 1233, 1240-1241.) The party opposing the motion has the burden in demonstrating the exemption applies. (*Ibid.* at 1241.)

In *Southwest Airlines Co. v. Saxon* (2022) 596 U.S. 450, 454, the plaintiff worked at Southwest Airlines as a ramp supervisor which required her to load and unload baggage, airmail, and commercial cargo on and off airplanes that travel across the country. Southwest transported more than 162 million passengers, and 256 million pounds of cargo. (*Id.*) The Supreme Court focused on the word “engaged” which means occupied, employed or involved in—therefore, any worker directly involved in transporting goods across state or international borders fell within the exemption. (*Id.* at 457.) The fact that airline employees who physically load and unload cargo on and off planes that travel in interstate commerce were part of the interstate transportation of goods. (*Id.*) Cargo workers were intimately involved in the transportation of commerce. (*Id.* at 458-459.)

“Truck drivers who cross interstate lines usually are considered transportation workers.” (*Performance Team*, *supra*, 241 Cal.App.4th at 1240; see also *Garrido v. Air Liquide Industrial U.S., LP* (2015) 241 Cal.App.4th 833, 838, 840-841; *Muro v. Cornerstone Staffing Solutions, Inc.*, (2018) 20 Cal.App.5th 784, 790-792.) This has been extended to employees who did not physically transport goods across state lines, but the employer was in the transportation industry and most of the goods transported originated outside of California. (*Muller v. Roy Miller Freight Lines, LLC* (2019) 34 Cal.App.5th 1056, 1068-1069.) It has also applied to drivers who made only intrastate deliveries but were part of “the last phase of a continuous journey of the interstate commerce” for out-of-state beverages. (*Nieto v. Fresno Beverage Co., Inc* (2019) 33 Cal.App.5th 274, 282-284; see also *Betancourt v. Transportation Brokerage Specialists, Inc.* (2021) 62 Cal.App.5th 552, 560-561 (last mile delivery drivers).)

The Ninth Circuit in *Ortiz v. Randstad Inhouse Services, LLC* (9th Cir. 2024) 95 F.4th 1152, 1157, involved a temporary worker at a warehouse that was part of the international supply chain for Adidas products—the warehouse received shipments from international locations and then shipped to consumers and retailers in a variety of states. The worker’s job duties included unloading, picking and transporting packages to racks to organize; transporting packages to the picking section of the warehouse; assisting pickers in obtaining packages for shipping; and assisting in preparing packages to leave the warehouse. (*Id.* at 1158.) The Ninth Circuit focused on the *Saxon* test: (1) considering the job description, including the specific nature of the employee’s work; and (2) the worker must play a direct and necessary role in the free flow of goods across the border, and actively engaged in the transportation of goods across borders. (*Id.* at 1159-1160.) The Court found that the employee’s job was actively involved in the transportation of goods even if his role was small. (*Id.* at 1162.)

Corp. (2015) 241 Cal.App.4th 377, 383 [describing U.S. Supreme Court and California Supreme Court precedent as binding authority and Ninth Circuit precedent as merely persuasive authority.]) *Rittman* is a Ninth Circuit case applying the FAA and Washington state law, and is not therefore, binding authority on this Court.

Here, Plaintiff claims she is exempt from the FAA because she was a transportation worker because she regularly handled merchandise that had been shipped to Defendant, which included unloading, receiving, and transportation. (Dec.Villeda ¶ 8.) She declares her work involved the continuous movement of goods from arrival at the store until their final destination. (*Ibid.*) Plaintiff incorrectly claims *Ortiz* is directly on point.

Defendant persuasively argues that Plaintiff must establish that she was personally involved in transporting goods from one location to another to further interstate commerce as was found in each and every case she cited. She cannot do so. Plaintiff was the GM at a single location in Temecula, not a delivery worker. It is nonsensical that, as a GM for a single location, she was *actively involved* in the transportation of goods when she “unloaded and received shipments, transported merchandise throughout the store” and stocked shelves. (Dec.Villeda ¶ 8.) Plaintiff does not declare that her primary job duties require her to transport merchandise to and from other store locations. To the contrary, she states this occurred only “when directed to do so.” (*Ibid.*) Plaintiff has not established she is exempt as a transportation worker. Thus, the FAA applies.

Plaintiff argues that Labor Code § 229 allows her to proceed on her pending claims with the Labor Commission despite the existence of the MAA due to the transportation worker exemption. As indicated above, the exemption does not apply here and the FAA does. “As applied to contracts involving interstate commerce, this statute [Labor Code § 229] conflicts with the FAA § 2 and is therefore preempted.” (Knight, *et. al.*, CPG: Alternative Dispute Resolution (TRG 2021) § 5:49 citing, *Perry v. Thomas* (1987) 482 U.S. 483, 490.) Since the FAA applies, Labor Code § 229 is preempted.

Defendant asserts that Plaintiff agreed to arbitrate her employment-related disputes. Plaintiff signed the MAA electronically through her Dayforce account. (Dec.Rodrigues ¶¶ 9-20, Exs. “A” – “C”.) To the contrary, Plaintiff asserts that she “does not recall being presented with, reviewing, or signing an arbitration agreement during her employment with Defendant.” (Dec.Villeda ¶ 6.) She argues that Defendants have failed to provide an evidentiary foundation establishing she agreed to the MAA.

Any writing must be authenticated before the writing, or secondary evidence of its content, may be received in evidence. (Evidence Code §1401; *People v. Valdez* (2011) 201 Cal.App.4th 1429, 1435.) “Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by other means provided by law.” (Evid. Code § 1400; *People v. Valdez, supra.*) Civil Code § 1633.9 addresses how a proponent of an electronic signature may authenticate the signature, i.e., show that the signature is, in fact, the signature of the person the proponent claims it is. The statute provides as follows:

- (a) An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.

- (b) The effect of an electronic record or electronic signature attributed to a person under subdivision (a) is determined from the context and surrounding circumstances at the time of its creation, execution, or adoption, including the parties' agreement, if any, and otherwise as provided by law.

(Civil Code § 1633.9; see also *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843).

Here, Defendant has submitted the declaration of Thais Rodrigues, Defendant's Head of People & Culture, Americas, who has access to Defendant's employees' personnel records regularly maintained by Defendant in the ordinary course of business. (Dec.Rodrigues ¶ 2.) She declares she has personal knowledge of such records, which she is authorized to certify, and that she has personal knowledge of Defendant's business operations. (*Ibid.*) Ms. Rodrigues certifies that the MAA is from Plaintiff's personnel file. (*Id.* ¶¶ 5, 18.) She declares and authenticates that on 8/30/21, Plaintiff entered the MAA. (*Id.* ¶ 8, Ex. "A".) Ms. Rodrigues explains the general process for team members to access their individual Dayforce accounts for which only he/she has access, to read and review documents including policies and agreements by clicking a box to confirm, and to sign such as the MAA. (*Id.* ¶¶ 10-15.) She asserts that only the person to whom the Dayforce account belongs may make the confirmation. (*Id.* ¶¶ 16, 19, Ex. "B".) She declares that Plaintiff executed the MAA under "Valeria Marquez", believed to be her maiden name, which was changed to Villeda in June of 2025. (*Id.* ¶ 17, Exs. "B"- "C".) Contrary to Plaintiff's argument challenging authentication, Ms. Rodrigues has established that only Plaintiff had access to her unique account.

Nonetheless, Ms. Rodrigues provided additional details of the onboarding process. (Supp.Dec.Rodrigues ¶¶ 3-8.) And Plaintiff argues that she was a GM, not a team member, however, Ms. Rodrigues declares that when she was hired, Plaintiff was brought in as a "Manager in Training". (*Id.* ¶ 9, Ex. "F".)

While Plaintiff asserts objections to Ms. Rodrigues' initial declaration, the objections are not well-taken. Ms. Rodrigues has established a foundation for her statements and asserts personal knowledge based on her review of the documents in Plaintiff's personnel file. Ms. Rodrigues' declarations are typical of declarations provided under similar circumstances. Moreover, Plaintiff has not asserted that she did not access her Dayforce account or electronically sign the MAA. Thus, Defendant has established the existence of the MAA.

Plaintiff argues that the MAA is both procedurally and substantively unconscionable.

It is true that a contract is unenforceable if it is unconscionable. (Civil Code §1670.5.) Under California law, "[i]f the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result." (Civil Code § 1670.5(a); see *Armendariz v.*

Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114.) It should be noted that the FAA limits state unconscionability rules that facially discriminate against arbitration. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1143.)

“[T]he doctrine of unconscionability has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” (*Sanchez v. Valencia Holding Co.* (2015) 61 Cal.4th 899, 910.) Both elements must be present to some degree for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability. (*Armendariz, supra*, 24 Cal.4th at 114.) Because unconscionability is a contract defense, the party asserting the defense bears the burden of proof. (*Sanchez, supra*, 61 Cal.4th at 911.)

Plaintiff argues that the AA is procedurally unconscionable. “‘Procedural unconscionability’ concerns the way the contract was negotiated and the parties’ circumstances at that time. It focuses on the factors of oppression or surprise. This element is generally satisfied if the agreement constitutes a contract of adhesion.” (*Id.*, citing *Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1280-1281.) Adhesion contracts are “standardized contracts drafted by a party of superior bargaining power and presented to the weaker party on a take-it-or-leave-it basis”. (*Id.*)

Plaintiff argues that the MAA failed to attach the applicable arbitration rules and required Plaintiff to independently search for them via a link. The failure to attach a copy of the applicable arbitration rules, by itself, does not render the agreement procedurally unconscionable. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1246; *Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 691 [“there could be no surprise, as the arbitration rules referenced in the agreement were easily accessible to the parties – the AAA rules are available on the internet”.]) It contributes to surprise only if the rules are found to contain unexpected provisions that limit the scope of the plaintiff’s claims or otherwise affect the relief available. (*Baltazar*, 62 Cal.4th at 1246 [distinguishing cases such as *Trivedi v. Curexo Technology Corp.* (2010) 189 Cal.App.4th 387 where the plaintiff’s unconscionability claim depended in some manner on the arbitration rules]; *Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1470.) Nonetheless, Plaintiff acknowledges a link to the arbitration rules was provided. (Dec.Rodrigues, Ex. “A”.)

Plaintiff also argues that there was unequal bargaining power and she had no ability to negotiate the terms. However, the MAA provided Plaintiff for up to thirty days to **opt-out** of the MAA with no adverse impact on her employment status. (Dec.Rodrigues ¶ 8, Ex. “A”, p. 3, § 4.) Thus, it was not presented to her as a condition of employment or on a take-it-or-leave-it basis. Therefore, Plaintiff has not established any procedural unconscionability at all.

Plaintiff also addresses substantive unconscionability, which focuses on the terms of the agreement and whether those terms are so unduly harsh or unreasonably one-sided as to “shock the conscience.” (*Marin Storage & Trucking, Inc. v. Benco Contracting & Eng.* (2001) 89 Cal.App.4th 1042, 1055.) It should also be noted that “a sliding scale is invoked whereby the more procedurally oppressive the arbitration clause is, the less evidence of substantive unconscionability is required to warrant the conclusion that the

agreements to arbitrate are unenforceable.” (*McManus v. CIBC World Markets Corp.* (2003) 109 Cal.App.4th 76, 91.)

Plaintiff argues that the MAA contains a high degree of substantive unconscionability because it contains terms demonstrating a lack of mutuality. “A lack of mutuality exists when an arbitration agreement expansively defines who is to be bound by the agreement on one side, but restrictively defines who is bound by it as to the other side.” (*Cook v. Univ. of So. Cal.* (2024) 102 Cal.App.5th 312, 326.) In *Cook*, the Court noted that the agreement required Cook to arbitrate all claims against USC or any of its related entities but did not require those related entities to arbitrate their claims against Cook. (*Ibid.*) Plaintiff argues that here, as in *Cook*, the MAA “applies to a dispute that the *Company may have against you*, or that *you may have against*: (1) the Company; (2) its officers, directors, principals, shareholders, members, owners, employees, or agents; (3) Company’s benefits plans or the plan’s sponsors, fiduciaries, administrators, affiliates, or agents; and (4) all successors and assigns of any of them. (Dec.Rodriguez ¶ 8, Ex. “A”). Essentially, Plaintiff argues that the MAA does not encompass a reciprocal obligation.³

The MAA contains some overbreadth because it requires Plaintiff to arbitrate claims against many non-parties but does not require them to arbitrate claims against her. However, the MAA is limited to claims relating to employment making it narrower and factually distinguishable from *Cook*. More importantly, even where there is some substantive unconscionability, some degree of procedural unconscionability is also required. Here, as discussed above, there is **no** procedural unconscionability. Thus, overall, the MAA is not unconscionable.

9.

CASE #	CASE NAME	HEARING NAME
CVME2602754	IN RE: VERONICA FONCECA	MOTION TO VACATE ORDER AND APPROVE FIRST AMENDED PETITION

Tentative Ruling: GRANTED.

10.

CASE #	CASE NAME	HEARING NAME
CVME2604565	O'DUFFY BROS. VS DUFFY	HEARING ON ANTI-SLAPP MOTION

Tentative Ruling: DENY

Plaintiffs fail to meet their burden under prong one of the anti-SLAPP analyses. Because of this, the untimely opposition is moot, and the court will not consider probability of prevailing under prong 2.

On 2/27/2026, O'Duffy Bros, Inc. and James T. Duffy (“James” and collectively “Plaintiffs”) filed a complaint against Nicholas Duffy (“Nicholas”) and Duffy General Engineering (“Defendants”) asserting the following causes of action: (1) breach of fiduciary duty; (2) breach of duty of loyalty; (3) usurpation of corporate opportunity; (4) fraud (intentional misrepresentation); (5) fraud (concealment); (6) misappropriation of trade secrets; (7)

intentional interference with contract; (8) intentional interference with prospective economic advantage; (9) UCL; (10) unjust enrichment; and (11) accounting.

The complaint states that Nicholas was an officer for O'Duffy Bros, Inc. and while serving as an officer, secretly formed Duffy General Engineering in January 2024. After Duffy General Engineering got its contractor's license, the complaint alleges Nicholas solicited customers away from O'Duffy Bros, Inc. to his own company, Duffy General Engineering.

On 6/5/2026, Defendants filed a cross-complaint ("XC") for (1) breach of fiduciary duty; (2) intentional interference with economic relations; (3) defamation; and (4) accounting against Plaintiffs. Generally, the XC alleges that Plaintiffs intentionally interfered with Defendants' business relations via defamation.

Now, Plaintiffs specially move to strike the second and third causes of action of the XC pursuant to CCP § 425.16 ("Anti-SLAPP motion"), arguing Plaintiff's claim arises from protected activity. Plaintiffs argue the communications to third parties were made in anticipation of and during litigation, as well as to interested parties.

In an untimely opposition, Defendants argue Plaintiffs failed to meet their burden to show the conduct at issue qualifies as protected activity.⁴

In reply, Plaintiffs object to the untimely opposition.

In the first step of the analysis, the moving defendant must identify all allegations of protected activities and demonstrate that the challenged claims arise from those activities. (*Baral v. Schnitt* (2016) 1 Cal.5th 376; *Shahbazian v. City of Rancho Palos Verdes* (2017) 17 Cal.App.5th 823.) In so doing, the court is "not limited to examining the allegations of the complaint alone but rather considers the pleadings and the factual material submitted in connection with the special motion to strike." (*Contreras v. Dowling* (2016) 5 Cal.App.5th 394, 408.)

Second, "[i]f the court finds the defendant has met this threshold burden, it then determines whether the plaintiff has demonstrated a probability of prevailing on the merits of the plaintiff's claim." (*Navellier v. Sletten, supra*, 29 Cal.4th at 88-89.) To meet this second step, the plaintiff must demonstrate: (1) "that the complaint is both legally sufficient" and (2) "supported by a...prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. [Citation.]" (*Id.* at 89.) In analyzing this step, the court considers "the pleadings and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (CCP § 425.16(b).)

"[T]he focus is on determining what 'the defendant's activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.'" (*Park v. Board of Trustees of the California State University* (2017) 2 Cal.5th 1057, 1063.) "[I]n determining whether the challenged cause of action arises from protected conduct, the first prong, the court necessarily looks to the allegations in the operative complaint. This does not preclude a court from examining affidavits in making

the first prong assessment; in fact, the Legislature explicitly permits a court in making the first prong assessment to rely on affidavits. (CCP § 425.16, subd. (b)(2).)

As a preliminary issue, the complaint is largely uncertain as to what specific conduct concerns the basis of the second and third causes of action such that it is clear that the two causes of action are subject of the allegations such that the anti-SLAPP statute would bar the complaint. The second cause of action for intentional interference with economic relations refers generally to “contacting third parties directly and soliciting them to cancel their contracts and business...using O’Duffy Bros., Inc. standing in the contracting community to dissuade and steer away new business...[and] slandering and libeling DGE’s reputation in the contracting community. (XC, ¶¶ 21 and 25.)

“The question is what is pled—not what is proven.” (*Comstock v. Aber* (2012) 212 Cal.App.4th 931, 942.) “ ‘If there are no acts alleged, there can be no showing that alleged acts arise from protected activity.’ ” (*Central Valley Hospitalists v. Dignity Health* (2018) 19 Cal.App.5th 203, 218.) If the complaint is vague, it is not clear whether the anti-SLAPP statute applies. (See *Turnbull v. Lucerne Valley Unified School District* (2018) 24 Cal.App.5th 522, 534.) As explained by one court:

It would be inappropriate for us to insert into a pleading claims for relief based on allegations of activities that plaintiffs simply have not identified, even if the parties suggest on appeal how plaintiffs might have intended to frame those claims or attempt to identify the specific conduct or assertions of statements alleged to be false on which plaintiffs intended to base such claims for relief. It is not our role to engage in what would amount to a redrafting of the first amended complaint in order to read that document as alleging conduct that supports a claim that has not in fact been specifically alleged and then assess whether the pleading that we have essentially drafted could survive the anti-SLAPP motion directed at it. The anti-SLAPP statute operates in a very specific way, permitting a court to strike from a complaint only “[a] cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue” when the plaintiff cannot establish a probability of prevailing on the claim. (§ 425.16, subd. (b)(1).) The anti-SLAPP statute’s stark remedies come into play to bring an end solely to “meritless” claims filed primarily to chill the defendant’s exercise of his or her First Amendment rights [citation]. Where, as here, *the operative complaint alleges no act on the part of the moving defendants in support of the claim or claims for relief that those defendants seek to strike from that complaint, defendants are not entitled to strike those claims for relief pursuant to the anti-SLAPP statute, although they may have other remedies available to them to address deficiencies in the pleading.*

(*Medical Marijuana, Inc. v. ProjectCBD.com* (2016) 6 Cal.App.5th 602, 621 (emphasis added).) As the actual statements and conduct are not clear in their content or purpose, the court cannot strike the complaint based on Plaintiffs’ surmise of the claims.

The only specifically identified speech is a 5/6/2026 letter mentioned only in the third cause of action. (XC, ¶ 25.) The letter is included with the moving papers, attached as Exhibit A to the declaration of James. Plaintiffs focus on one sentence in the letter stating, “We will be taking action against Duffy General Engineering, Inc...” as support for the

argument that the cause of action is protected speech pursuant to either CCP §425.26(e)(1) or (e)(2), as “any written or oral statement or writing made before a legislative, executive, or judicial proceeds” or “in connection with an issue under consideration or review.”

However, “[a] claim does not arise from constitutionally protected activity simply because it is triggered by such activity or is filed after it occurs. [Citation.] Rather, the focus is on the substance of the lawsuit. ‘[T]he critical point is whether the plaintiff’s cause of action itself was based on an act in furtherance of the defendant’s right of petition or free speech.’” (*World Financial Group, Inc. v. HBW Ins. & Financial Services, Inc.* (2009) 172 Cal.App.4th 1561, 1568.) Importantly, “The trial court should distinguish between (1) speech or petitioning activity that is mere evidence related to liability and (2) liability that is based on speech or petitioning activity.” (*Graffiti Protective Coatings, Inc. v. City of Pico Rivera* (2010) 181 Cal.App.4th 1207, 1214-1215.) Here, it is clear that the letter is mere evidence related to liability – that is, offered as proof of Plaintiffs’ alleged defamation rather than the basis of liability. Plaintiffs fail to meet their burden to establish the letter is protected speech under (e)(2).

Plaintiffs also argue the conduct identified in the second and third causes of action are protected speech under (e)(4). Any conduct in furtherance of the exercise of the constitutional right of petition or free speech in connection with a public issue or an issue of public interest is protected under (e)(4). “Section 425.16 does not define ‘an issue of public interest.’ Nevertheless, the statute requires the issue to include attributes that make it one of public, rather than merely private, interest. [Citation.]” (*Grenier v. Taylor* (2015) 234 Cal.App.4th 471, 481.) “Further the matter should be something of concern to a substantial number of people.” (*Ibid.*) “Being based on case law, the precise boundaries of a public issue have not been defined.” (*Hailstone v. Martinez* (2008) 169 Cal.App.4th 728, 736.)

“A few guiding principles may be derived from decisional authorities. First, ‘public interest’ does not equate with mere curiosity.... Second, a matter of public interest should be something of concern to a substantial number of people....” (*Thomas v. Quintero* (2005) 126 Cal.App.4th 635, 658.) “Third, there should be some degree of closeness between the challenged statements and the asserted public interest....” (*Ibid.*) “Fourth, the focus of the speaker’s conduct should be the public interest rather than a mere effort ‘to gather ammunition for another round of [private] controversy....’” (*Id.* at 658-659, brackets in original.)

“The ‘public interest’ component of section 425.16, subdivision (e)(3) and (4) is met when ‘the statement or activity precipitating the claim involved a topic of widespread public interest,’ and ‘the statement ... in some manner itself contribute[s] to the public debate.’ [Citation.]” (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1246.) For instance, demonstrations, leafleting, publication of articles on the internet criticizing governmental policy regarding the alleged mistreatment of animals at city-run animal shelters were held to “constitute a classic exercise of the constitutional rights of petition and free speech in connection with a public issue or an issue of public interest within the meaning of section 425.16, subdivision

(e)(4).” (*City of Los Angeles v. Animal Defense League* (2006) 135 Cal.App.4th 606, 620.)

In making this argument, Plaintiffs admit that “James’ communication was directed only to existing contractors, vendors, and business associates who had previously conducted business with O’Duffy Bros.” (Motion, p. 9:10-19.) But such an argument betrays any argument that the conduct should be protected under (e)(4) as it is clearly not a matter of public interest. Plaintiffs make no attempt to even argue that the issue is one of public interest.

For these reasons, Plaintiffs fail to meet their burden under prong one of the anti-SLAPP analyses. Because of this, the untimely opposition is moot, and the court need not consider probability of prevailing under prong 2.